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OPEN LETTER TO THE CANDIDATES FOR MINNESOTA ATTORNEY GENERAL

October 10, 2026

BY CERTIFIED MAIL, BY EMAIL, AND PUBLIC RELEASE

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Re: Minnesota Statutes § 8.31, Subdivision 1: the office's public position, its position in federal court, and three questions for each candidate

Dear Mr. Ellison and Mr. Schutz:

I write as a Minnesota citizen to both of you, on the same day and in the same words, with three questions about the office you are asking to hold. This letter is public. On the day it is mailed to you it goes to the Minnesota reporters covering the office and the fraud cases, with its enclosure. Your answers, or the absence of them, will be sent to the same reporters and published on October 21, 2026.

What I asked the office. On February 10, 2026, I hand-delivered to the Office of the Attorney General a referral documenting consumer fraud and computer crimes by four companies operating in Minnesota across county lines, supported by exhibits. It invoked the Prevention of Consumer Fraud Act, Minn. Stat. §§ 325F.68–.70, and asked the office to investigate, to issue civil investigative demands, and to pursue civil enforcement, among other things.

What the office answered. On February 26, 2026, the office wrote: “the Minnesota Legislature delegated the authority to prosecute criminal matters to the county attorney. It did not delegate any such authority to this Office, nor did it delegate the authority to investigate criminal matters

to this Office.” The office’s website says the same.¹ The letter did not mention § 8.31. It did not answer the civil requests. I am the plaintiff in *Kirchner v. Ellison*, No. 26-cv-2594 (D. Minn.), which arises from that letter and in which a notice of appeal has been filed.

What my case pleads, and when. The Complaint, filed May 12, 2026 (Doc. 1), rests on one predicate, stated in its second and third paragraphs: Minn. Stat. § 8.31, subd. 1 provides that “The attorney general shall investigate violations of the law of this state respecting unfair, discriminatory, and other unlawful practices in business, commerce, or trade, and specifically, but not exclusively, ... the Prevention of Consumer Fraud Act (sections 325F.68 to 325F.70)”;

“The word is ‘shall.’ Not ‘may.’ Not ‘if the county attorney requests.’” (Compl. ¶¶ 2–3); and under Minn. Stat. § 645.44, subd. 16, “‘Shall’ is mandatory” (Compl. ¶ 35). The case asks whether the office has that authority and that duty, and whether it will say so. It was filed nearly five months before October 2.

What the office says in court. In that case the office has defended the February 26 statement as accurate about criminal matters, telling the court the letter “contains no misstatement of law” (Doc. 16 at 5) and that the Attorney General “may only exercise the prosecutorial powers of a county attorney at the direction of the governor or via consent from a county attorney” (Doc. 11 at 8). At the same time it conceded that the office “must investigate” violations of the Consumer Fraud Act (Doc. 16 at 5), and argued in the alternative that even if the letter and the website “do misstate the law,” I have no redress because investigation is discretionary (Doc. 16 at 6). The court dismissed without deciding the question: “even if *Kirchner* is correct” that the office has the authority, I have no judicially cognizable interest in the prosecution of another (Doc. 27 at 5). Nothing in my suit asks the office to give up its discretion over what it investigates or prosecutes. The record is set out in the enclosure, point 7.

What Mr. Ellison said on October 2, 2026 (MPR News, Politics Friday; times are from the recording published on YouTube). On the statute, at **2:49**: “Minnesota Statute 8.31 requires, it says shall, the attorney general shall investigate all illegality, unfairness and discrimination in the area of business, commerce and trade. And I have lived up to that as early as this morning.” That is the Complaint’s predicate in the Complaint’s word, from the officeholder, nearly five months after the case was filed and while his office, in court, says it “could still reject the petition for any reason at all” (Doc. 37 at 5). On criminal matters, at **12:37**: “They’re investigators ... They are career prosecutors and the Bureau of Criminal Apprehension. We just brought a bunch of cases

¹ The office’s “Public Protection” page ([ag.state.mn.us](https://www.ag.state.mn.us), as captured March 18, 2026) states that the Legislature “delegated the authority to prosecute criminal matters to the county attorney. It did not delegate such authority to this Office.” (Compl. ¶ 22; Ex. B at 4.) The same disclaimer stood on the office’s “How Can We Help?” page under Attorney General Lori Swanson as early as the Internet Archive’s capture of January 12, 2015 (<https://www.ag.state.mn.us/Office/Help.asp>, archived at web.archive.org/web/20150112011848/https://www.ag.state.mn.us/Office/Help.asp): “The Minnesota legislature delegated the authority to prosecute criminal matters to the county attorney and delegated the authority to investigate criminal matters to local officials.” (Compl. ¶ 23; Ex. B at 50.)

this week”; at **21:19**: “I also am assisting local prosecutors in the investigation and in one case, prosecution of the people who were shot by ICE agents”; at **44:06**: “We just convicted somebody in Winona who was a coach and criminally victimized three people.”

What Mr. Schutz said on October 2, 2026. At **4:34**: “The attorney general is tasked under Minnesota statutes with original criminal jurisdiction over Medicaid and medical assistance fraud”; at **10:31**: “You prosecute people by charging them with at least three felony counts of fraud over \$35,000”; and at **22:07–23:26**, on the ICE shootings: “there needed to be a joint federal and state investigation ... if it leads to prosecutions and the evidence warrants it, that’s what should happen ... I am more than happy to lead the charge.” On the standard for acting against a company, at **16:14**: “if they committed wrongdoing and Minnesotans were harmed, the attorney general should take action against that”; asked whether that is the standard he uses, Mr. Ellison, at **16:24**: “Well, obviously, but that’s just the basics.”

The three questions. Each can be answered yes or no.

1. Will the office, under you, recognize its authority under Minn. Stat. § 8.31, subd. 1 to investigate a citizen’s referral of unlawful business practices, including consumer fraud, on its own, without a request from a county attorney or the Governor, the duty Mr. Ellison stated on October 2?
2. Will the office, under you, recognize that its authority to investigate criminal matters, and to cause and conduct their prosecution, is not limited to Medicaid fraud: that it rests on Minn. Stat. § 8.31, subd. 2, on the office’s own information, and on § 8.01, with the request pathways that section names, and that the Legislature recognized it again in 2025 in § 299C.061, subd. 4(c); and will the office withdraw the statement, in the letter and on the website, that the Legislature did not delegate such authority to this Office?
3. Will the office, under you, answer a citizen’s documented referral of unlawful practices that reach across county lines, or otherwise lie beyond a single county attorney’s reach, with a decision on its merits, or with a declination in the exercise of whatever discretion the law gives, rather than with a statement that it lacks the authority?

I submit these questions as a lifelong Minnesota resident who places great weight on the Office of the Attorney General, and not in my capacity as a party to a lawsuit. Your answers cannot confer standing in my case or stand in for the Eighth Circuit’s ruling; that belongs to the court, on the record. Every public office, and everyone elected to it, is bounded by its authority. Voters can cast an informed vote for the office only when a candidate’s understanding of that authority matches the office’s. Here, what each of you said on October 2 contradicts, or is hard to square with, what the office says in federal court, on its website and in its letter to me. The contradiction predates the current administration: the office carried the disclaimer on its website under a predecessor as early as 2015, open to review by any incumbent since, and the February letter repeated it. An inherited position can be corrected without fault, and the question for each of you

is only whether the office, under you, will keep it. For the sake of Minnesota voters, I ask you to say which it is.

I ask for your written answers by October 21, 2026. On that day I will send the same reporters what each of you answered, or that you did not, so that voters may read it before Election Day. A reply form is enclosed, with a stamped return envelope; the same answers may be sent to the email address above. Enclosure A sets out each quotation above with its source. The full transcript, with every quotation linked to its moment in the recording, and the record citations are available at kirchner.ink/mn-ag-candidates-open-letter.

Respectfully,

JOSEPH KIRCHNER

October 10, 2026

Enclosure A: What the Office Said and What the Candidates Said, Point by Point (3 pp.)

Enclosure B: Reply Form (1 p.), with a stamped return envelope